

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201603124	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 03/28/2016 7:07 PM	Location of Incident: 6th Avenue and 65th Street; 68th Precinct stationhouse	18 Mo. SOL 9/28/2017	Precinct: 68		
Date/Time CV Reported Mon, 04/11/2016 6:50 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 04/11/2016 6:50 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Bari	31780	936172	068 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Roman Mishiyeve	2907	928791	068 PCT
2. POM James Pedersen	13972	947331	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Bari	Force: At 6th Avenue and 65th Street in Brooklyn, Police Officer Michael Bari struck § 87(2)(b) with a car door.	A . Unfounded
B . POM Michael Bari	Discourtesy: At 6th Avenue and 65th Street in Brooklyn, Police Officer Michael Bari spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Michael Bari	Off. Language: At 6th Avenue and 65th Street in Brooklyn and at the 68th Precinct stationhouse, Police Officer Michael Bari made remarks to § 87(2)(b) based upon race.	C . Unsubstantiated
D . POM Michael Bari	Force: At 6th Avenue and 65th Street in Brooklyn, Police Officer Michael Bari used physical force against § 87(2)(b)	D . Exonerated

Case Summary

On April 11, 2016, § 87(2)(b) filed this complaint via the CCRB's call processing system.

On March 28, 2016, at approximately 7:00 p.m., § 87(2)(b) was driving his black Lexis RX350 with his wife, infant child, and § 87(2)(b) daughter. After making a left onto 6th Avenue and then a right on 65th Street in Brooklyn, § 87(2)(b) noticed a marked police vehicle, with its turret lights engaged, in his mirror.

Both vehicles pulled over on 65th Street near the intersection of 65th Street and 6th Avenue. PO Michael Bari exited the police vehicle, approached § 87(2)(b)'s vehicle at the driver side, and requested § 87(2)(b)'s license, registration, and insurance. § 87(2)(b) was not certain where his registration card was, and as he was looking for it, PO Bari allegedly opened the driver side door and closed it on § 87(2)(b)'s leg (**Allegation A**).

After obtaining § 87(2)(b)'s driver's license, PO Bari returned to the police vehicle. After 10 minutes § 87(2)(b) found the registration card, and then exited the Lexis RX350 and approached the police vehicle. While near the police vehicle, § 87(2)(b) took a photo of the police vehicle's license plate, to which PO Bari allegedly responded, "I don't give a fuck" (**Allegation B**). § 87(2)(b) then returned to his vehicle.

After waiting for what seemed to be an hour, § 87(2)(b) exited his vehicle to tell PO Bari that his infant child was crying because of hunger. § 87(2)(b) also told PO Bari that he was abusing his authority by holding him for a long time. PO Bari then allegedly called § 87(2)(b) "an animal" (**Allegation C**).

Soon after, two more marked police vehicles arrived at the scene. After § 87(2)(b) spoke to Sgt. Roman Mishieyev, PO Bari placed § 87(2)(b) in handcuffs. While handcuffing § 87(2)(b) PO Bari twisted his arm, causing bruising on his arm between his hand and elbow (**Allegation D**). § 87(2)(b) was transported to the 68th Precinct stationhouse, and placed in a holding cell. While in the holding cell alone, PO Bari approached § 87(2)(b) and allegedly told him that he was "not human" (**Allegation C continued**).

§ 87(2)(b) was arrested for § 87(2)(b) [§ 87(2)(b)] [§ 86(1)(2)&(4)] § 87(2)(c)

There is not video evidence pertaining to this case.

Mediation, Civil and Criminal Histories

- This case was not mediation eligible due to the arrest.
- As of May 11, 2016, the Notice of Claim inquiry is still pending with the NYC Comptroller's Office.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 02).
- This is the third CCRB complaint filed against PO Bari, who has a total of four allegations in his CCRB history and has been a member of service for 11 years (see officer history). Of the four allegations, three were exonerated and one was unsubstantiated. One force allegation was exonerated and one discourtesy allegation was unsubstantiated.

Findings and Recommendations

Allegation A –Force: Police Officer Michael Bari struck § 87(2)(b) with a car door.

It is undisputed that PO Bari approached the front driver side of § 87(2)(b)'s vehicle.

During the initial intake message § 87(2)(b) alleged that as he was looking for his vehicle's registration card, PO Bari shut the driver side door on his leg "without saying sorry" (Board Review 03). § 87(2)(b) did not mention that a door was shut on his leg during the follow up call by Intake Investigator Melanie Cruz (Board Review 04) or the phone statement (Board Review 05) taken by Investigator Wassim Abedrabbo. During § 87(2)(b)'s CCRB interview he stated that when PO Bari shut the door on his leg, he yelled out that it hurt, but PO Bari ignored it (Board Review 06). § 87(2)(b) described the force used to shut the door as "very hard." However, § 87(2)(b) did not independently mention the allegation during his CCRB interview. § 87(2)(b)'s statements regarding the allegation came only after Supervisor Lily Carayannis confronted him with the inconsistency between his intake message and his other statements.

At no point did § 87(2)(b) claim any injuries to his leg or ankle, but he did complain of a bruise on his arm (Board Review 07), allegedly obtained as he was being placed in handcuffs (see below).

In the March 28, 2016, 7:15 p.m., memo book entry (Board Review 08), PO Bari noted that while § 87(2)(b) was being transported from the scene of the incident to the 68th Precinct stationhouse, § 87(2)(b) "accused [PO Bari] of planting drugs in his pocket and hitting him with the car door at the scene." In that same entry, PO Bari noted that § 87(2)(b) did not have drugs on his person at any point during their interaction.

PO Bari stated that he did not open the door of § 87(2)(b)'s vehicle, or shut the door on § 87(2)(b)'s leg (Board Review 09). PO Bari did not recall seeing the driver side door being open before § 87(2)(b) opened it himself, or if he saw § 87(2)(b)'s leg in the frame of the car door at any point.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation A** be **unfounded**.

Allegation B –Discourtesy: At 6th Avenue and 65th Street in Brooklyn, Police Officer Michael Bari spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) exited his vehicle several times and that PO Bari told him to get back into his vehicle several times. It is undisputed that § 87(2)(b) took a photograph of PO Bari's license plate.

§ 87(2)(b) alleged that while he was taking photos of PO Bari's license plate, PO Bari said, "I don't give a fuck."

PO Bari stated that when § 87(2)(b) exited his vehicle, § 87(2)(b) began to yell that PO Bari had him there illegally and that PO Bari was going to shoot him. PO Bari commanded § 87(2)(b) to return to his vehicle four or five times. PO Bari did not say to § 87(2)(b) "I don't give a fuck."

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **unsubstantiated**.

Allegation C – Offensive Language: At 6th Avenue and 65th Street in Brooklyn and the 68th Precinct stationhouse, Police Officer Michael Bari made remarks to § 87(2)(b) based upon race.

During his CCRB statement § 87(2)(b) stated that he exited his vehicle a second time after waiting for an hour for PO Bari to return. § 87(2)(b) exited and told PO Bari that he was abusing his authority by keeping him there for so long; to which PO Bari responded by calling § 87(2)(b) an animal. PO Bari told § 87(2)(b) to return to his car, which he eventually did.

§ 87(2)(b) was subsequently arrested and transported to the 68th Precinct stationhouse and then placed in a holding cell. After approximately 20 minutes § 87(2)(b) requested a first telephone call. PO Bari went into the holding cell area and allegedly told § 87(2)(b) that he was “not human.” § 87(2)(b) responded by saying, “You are right... You are not treating me like I am human.”

PO Bari did not call § 87(2)(b) “an animal” or tell him that he was not human at any point during the interaction. He did not recall any conversation of § 87(2)(b)’s species or humanity.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be **unsubstantiated**.

Allegation D – Force: At 6th Avenue and 65th Street in Brooklyn, Police Officer Michael Bari used physical force against § 87(2)(b)

It is undisputed that PO Bari placed § 87(2)(b) in handcuffs at 6th Avenue and 65th Street in Brooklyn.

§ 87(2)(b) alleged that during the handcuffing, PO Bari pulled his arms in such a way that caused bruising to his forearm. § 87(2)(b) did not allege any force after he was placed in handcuffs.

PO Bari stated that § 87(2)(b) locked his elbows and tightened his muscles when the attempt to handcuff him was made. The only force used was pulling and turning § 87(2)(b)’s arms and wrists to place him in the handcuffs.

Patrol Guide Procedure 203-11 Use Of Force All members of the service at the scene of a police incident must use minimum necessary force.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be **exonerated**.

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____

Title/Signature

Print

Date